



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 21 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11505
(FIRST REVISION)

EXPIRATION DATE: April 30, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Manchester Tank, Brentwood, Tennessee.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain DOT Specification 4BW cylinders that are exempt from heat treatment requirements when nonpressure attachments are replaced or repaired. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.34(I)(6), the marking requirements of and 172.301(c), and 172.203(a).
5. BASIS: This exemption is based on the application of Manchester Tank dated April 15, 1998, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous materials authorized in DOT 4BW cylinders.	As appropri ate	As appropri ate	As appropri ate

7. PACKAGING AND SAFETY CONTROL MEASURES:

PACKAGING - Packaging prescribed are DOT Specification 4BW cylinders. Repair or replacement of footrings, neckrings, or other nonpressure attachments authorized by the specification for DOT-4BW (§ 178.61) cylinders may be made without conforming to the requirements of §173.34(I)(6), provided the requirements of §173.34(I)(4) (I) through (vi) are met.

8. SPECIAL PROVISIONS:

a. Persons repairing or replacing nonpressure attachments for prescribed packagings must have a copy of this exemption.

b. Persons who receive the packages covered by this exemption may offer them for transportation provided no modifications or changes are made to the packages and all terms of this exemption are complied with.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo only aircraft, and passenger aircraft.10. MODAL REQUIREMENTS: There are no modal specific requirements associated with this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 21 1998

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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